11. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON STATE-CHARTERED BANK.**
FILED BY:
TENTATIVE RULING:

At the hearing on November 03, 2024, this Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

In the name of judicial efficiency, the Court is going to continue this hearing to March 16, 2026, at 9AM in this department, to ensure the Court substitutes the proper administrator of the Estate of Nickolai Popov.

12. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY
TENTATIVE RULING:

Off calendar. This case has been transferred to D 32. The hearing will be reset in that department.

13. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION FILED BY: MBADIKE-OBIORA, MD, MAUREEN
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Maureen Mbadike-Obiora, MD's ("Plaintiff") motion for summary adjudication of her causes of action for breach of the Primary Care Provider Agreement and accounting. The Motion is opposed by Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively "Defendants"). Plaintiff moves for summary adjudication of her causes of action for breach of the primary care provider agreement and accounting.

The Court notes that this motion is being heard along with Defendants' cross-motion for summary judgment or in the alternative summary adjudication. The Court has made an independent review and determination of this motion in reaching its conclusion. (See *Advent, Inc. v. Nat'l Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453 ["The fact that both parties moved for summary judgment does not conclusively establish the absence of a triable issue of fact; the trial court must independently determine the motions."].)

For the following reasons, the motion is **denied**.

Legal Standard

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact … ." (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id*. at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).)

However, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar*, *supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

Analysis

Breach of the Primary Care Provider Agreement

Plaintiff moves for summary adjudication of her claim for breach of the Primary Care Provider Agreement on the grounds that it is undisputed that Muir IPA breached the agreement. Plaintiff argues that "[t]here is no dispute that Muir IPA's, Ofelia Mynock, was not billing for these non-capitated services which are also known as 'carve-outs'. (Declaration of Dr. Mbadike-Obiora.) ¶ Documents show that Muir IPA agreed with Dr. Mbadike-Obiora that she should be paid for these services. (Exhibit 14, Email Thread of October 19, 2015 from Alice Kugler to Ryan Altschuler and Ofelia Mynock.)" (Motion at 19:23-27.)

"Because summary judgment is defined by the material allegations in the pleadings, we first look to the pleadings to identify the elements of the causes of action for which relief is sought." (*Baptist v. Robinson* (2006) 143 Cal.App.4th 151, 159.) Here, the Fifth Amended Complaint alleges that "[n]otwithstanding its obligations under the Primary Care Provider Agreement to reimburse Plaintiff for non-capitated services and procedures performed in the office, Defendant MMGIPA refused to pay Plaintiff or bill for in-office procedures provided Medicare Enrollees." (5th AC at ¶ 79.)

Plaintiff's motion does not identify exactly which provisions of the Primary Care Provider Agreement are allegedly in breach and the connection with her cited evidence is unclear. Furthermore, Plaintiff fails to identify with specificity her damages in connection with the alleged breach of the Primary Care Provider Agreement. As Defendant notes, Plaintiff identified 10 office procedures for which she claims she was not compensated. (Cisz Decl. Ex. J [Plaintiff's Responses to Special Interrogatory Nos. 30, 32, and 33.) However, she does not identify any dollar figure associated with those alleged breaches. (Cisz Decl. Ex. J (Responses to Special Interrogatory Nos. 30, 32, and 33) & Ex. H (Response to Form Interrogatory 50.2)). This is fatal to her cause of action for breach of the Primary Care Provider Agreement.

However, even assuming *arguendo* that Plaintiff met her initial burden with respect to this claim, the undisputed evidence demonstrates that Plaintiff waived any claim for breach of the Primary Care Provider Agreement under the Settlement Agreement in Case No. C18-02543, which also terminated the PCP Agreement by its own terms.

The Settlement specifically references the instant case, described as the "Obiora Action," and required that Plaintiff eliminate "the pending causes of action for declaratory relief against the IPA and Ute Burness and eliminates the following prayers for relief: (i) For declaratory judgment stating that the Physician Common Stock Subscription Agreement barred Defendant MMGIPA from terminating Plaintiff's relationship with JOHN MUIR, absent a written modification of the Agreement with the consent of both Plaintiff and MMGIPA; (ii) For declaratory judgment stating that the Plaintiff's PCP Exclusivity Agreement barred Defendant MMGIPA from terminating Plaintiff's Common Stock Shareholder Agreement by requiring that Plaintiff enter another exclusivity agreement with HILL when Plaintiff's PCP Exclusivity Agreement was still in effect; and (iii) For declaratory judgment stating that it was unreasonable and arbitrary for Defendants MMGIPA and UTE BURNESS to require that Plaintiff enter an exclusive PSA with HILL, which would require Plaintiff to leave BASS and turn over her billing services again to Defendants who had mismanaged Plaintiff's billing and were incapable of managing and billing services under a 2015 pilot program." (Settlement Agreement at § 1(D).)

Additionally, the Settlement Agreement included broad waiver and release language as well as a provision that except for the agreement and the agreements then alleged in the case "any and all agreements, understandings, rights, duties, or obligations between any of the Plaintiffs, on one hand, and any of the Defendants, on the other hand, as alleged in the Action are hereby terminated and are of no further force and effect." (Terms of the Agreement § 3.)

Notwithstanding this language, in the Fourth Amended Complaint filed on February 2, 2023, after executing the Settlement Agreement in Case No. C18-02543, Plaintiff added a claim for breach of the Provider Agreement. Plaintiff argues that Breach of the Primary Care Provider Agreement was included in the Third Amended Complaint (and therefore a surviving claim under the Settlement Agreement), relying on paragraph 37 and Exhibit 1 of the same. Paragraph 37 of the TAC reads in full:

> On or about October 15, 2015, Plaintiff discovered that procedures she performed on capitation patients were not being reimbursed. Consequently, Plaintiff sent an email to DOE-1 Defendant UTE BURNESS, Defendant KENNETH BOWERS, MMGIPA Director of Practice Management, Alice Kugler, and, Steven Kaplan, MD, President and

Chairman of the Board of Directors of MMGIPA, stating as follows:

> I am writing this email, to confirm the information that I received today from Ofelia that the IPA does not reimburse procedures for capped patients.
>
> I clearly remember when lectures were arranged with Specialists, Dermatologist, Podiatrist, Orthopedist and we were encouraged to perform dermatological procedures, treat ingrown toe nails, and give join injections. It has just come to my attention that I am not being reimbursed for all the procedures l have performed for capped patients for the last 1 year.
>
> I did not receive any documentation that states we should not perform these procedures. As a sole proprietor, the write offs are a colossal loss not to mention the issue I have had with billing and cash flow since going on to Epic.
>
> These losses need to be addressed and a communique sent out as I am sure there are other providers still performing procedures on capped patients.
>
> Thank you for your anticipated cooperation in this matter.

(Exhibit 9, Plaintiff's October 15, 2015 Email to Ute Bumess.)

Although the Provider Agreement is attached to the Third Amended Complaint, it is only briefly referenced: first, in the factual background to state that she executed the agreement in connection with her purchase of a clinic in Contra Costa County from Dr. Wolf, a shareholder of MMGIPA. (TAC at ¶ 8.) Next, to state that she was terminated under that Agreement on January 2, 2018. (*Id*. at ¶ 55.) Nowhere in the TAC does she allege breach of the Primary Care Provider Agreement. This is alleged for the first time in the Fourth Amended Complaint as a separate cause of action for Breach of Contract [Primary Care Provider Agreement]. As a consequence, at the time Plaintiff executed the Settlement Agreement, Plaintiff did not have a pending cause of action for breach of contract of the Primary Care Provider Agreement. Furthermore, the terms of the Settlement agreement clearly terminated the Primary Care Provider Agreement.

Plaintiff is not entitled to summary adjudication of her claim for breach of the Primary Care Provider Agreement.

<u>Accounting</u>

Plaintiff moves for summary adjudication on her cause of action for accounting on the grounds that she and Muir-IPA were in a relationship that required an accounting and there is a balance due for her billing that can only be ascertained by an accounting.

Plaintiff relies on *Teselle v. McLaughlin* and *Sass v. Cohen* for her argument that there is a relationship between herself and IPA that requires an accounting. (See Motion at 9:3-19 [citing *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179 and *Sass v. Cohen* (2020) 10 Cal.5th 861].)

The equitable accounting claim in *Teselle* arose from "the possession by the defendant of money or property which, because of the defendant's relationship with the plaintiff, the defendant is obliged to surrender. [Citation.]" (*Teselle*, *supra*, at pp. 179-180.) "An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation. [Citation.]" (*Id*. at p. 179.) The *Teselle* court further observed that "[a]n accounting is a 'species of disclosure, predicated upon the plaintiff's legal inability to determine how much money, if any, is due.'" (*Id*. at p. 180.)

Teselle requires circumstances in which one party, by virtue of a special relationship with the other, has come into possession of money or property that she or he is required to surrender to the latter.

Plaintiff has not met her initial burden to show that Defendant is in possession of her money or property such that she would be entitled to an equitable accounting. Plaintiff has not adduced any evidence that Defendants owe her money. "In an action for an accounting, the agent has the burden of proving that he paid to the principal or otherwise properly disposed of the money or other thing which he is proved to have received for the principal." (*Kennard v. Glick* (1960) 183 Cal.App.2d 246, 251.) The absence of evidence in support of Plaintiff's contention that she is owed a balance is reflected in her discovery responses. (See (Cisz Decl., Ex. I (Responses to Special Interrogatory Nos. 1 and 20).)

Plaintiff is not entitled to summary adjudication of her claim for an accounting.

<u>Evidentiary Objections</u>

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

14. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION HEARING ON SUMMARY MOTION FILED BY: CENTRAL EAST BAY IPA, MEDICAL GROUP INC
FILED BY:
<u>*TENTATIVE RULING:*</u>

Before the Court is Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively "Defendants")'s motion for summary judgment, or in the alternative summary adjudication. The motion relates to Plaintiff Maureen Mbadike-Obiora, MD ("Plaintiff")'s Fifth Amended Complaint ("5th AC") for (1) breach of contract (medical billing services agreement) (against IPA and Burness); (2) breach of contract (primary care provider agreement) (against IPA); (3) accounting (against IPA and Burness); (6) breach of implied covenant of good faith and fair dealing (against IPA and Burness); (7) intentional and negligent representation (against IPA and Kaplan); and (8) declaratory relief (against Burness and Bowers).

For the following reasons, Defendants' motion for summary judgment is **granted**.